Stronger Duties to the Living

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1. Introduction

We owe all our moral obligations more strongly to living than future persons for the following three reasons: [1] our epistemic limitations in gauging the impacts of our actions make moral obligations less clear and binding for future persons; [2] the non-identity problem suggests that the identity of future persons is dependent upon present choices, which alters moral obligations towards future persons into a collective approach; [3] future persons cannot participate in reciprocal relationships, which weakens moral obligations based on reciprocal bonds.

Corresponding to these distinctions in moral obligations, we have the following implications on policy making: [1] policies should focus on adaptive management that prevents irreversible harm and preserves options for future persons; [2] due to the non-identity problem, policies should mostly consider collective well-being (especially for future persons), contemporary policies may focus on individual welfare; [3] policies should prioritize the more foundational and unchanging mutual social contracts.

For the sake of this essay, ‘moral obligation’ will be defined as a duty or responsibility that one must avoid harming themselves or others. Moreover, the definition of “harm” shall be identical with Mill’s Harm Principle: “actions that directly injure the interests and rights of others.” Henceforth, moral obligation prevents the setback of the rights of individuals. Finally, for brevity, moral obligations toward living and future persons will be shortened to LMO and FMO respectively.

2. Differences between LMO and FMO

Due to epistemic limitations, concrete moral obligations that we owe to living persons – such as preserving the right to life or providing adequate [fuel] resources – will appear less binding or even non-existent when applied to future persons. Consequential causal chains of actions are too complex to trace for future persons to be precisely identified as victims of actions. This causes the duty of harm avoidance to be weakened as it lacks clear applications. Moreover, we can only make approximate predictions and assumptions of future persons’ interests and preferences. The exact knowledge about future situations is impossible to obtain. As Henry Sidgwick observes: “We cannot…tell how great the happiness of future generations will be…nor how far our conduct will affect it.” Precise welfare maximization requires reliable knowledge regarding future interests and preferences to compare states of situations. Hence, precise welfare maximization is prevented by epistemic limitations.

Imposing present principles upon future persons may lead to paternalism; knowledge gaps are filled by assumptions, and this may result in outcomes that harm the interests of future persons as interests and conditions change over time. For instance, a country

may pre-emptively expand fossil fuels production to meet future demands, however, this may result in greater ecological damage as well as ignoring alternative fuels from future technological advancements. On the other hand, living persons already exist and have clear rights and interests. For example, a public hospital denies conducting emergency surgery for a patient to save resources for administrative expansion. This decision violates the patient's immediate and empirically provable interest / right of avoiding death or physical harm (we are epistemically certain here). Overall, since we can clearly gauge the needs and suffering of living persons, we owe more imperative moral obligations to contemporaries than future persons, whose needs and interests remain in epistemic obscurity.

Secondly, Derek Parfit's non-identity problem directly weakens FMO, such as facilitating basic living conditions for offspring, by undermining the claim that present actions make specific future persons "worse off", which shifts FMO to an impersonal collective ground that is less binding than LMO. According to Parfit, the identity of future individuals relies upon present decisions such as timing of conception and environmental policies. For instance, a couple decides to have a child when they cannot sufficiently provide necessities for this child. This decision might seem to harm the child as she suffers from poor living standards. However, in an alternative scenario, the couple decides to delay the conception until they can support the child's life, which will result in the existence of an entirely different child compared to the former scenario. From this, Parfit extrapolates: "We do not make this particular child worse off than she would otherwise have been, since if we had acted differently this particular child would never have existed."

Although it seems that FMO does not apply under the non-identity problem (since future individuals can't be harmed), FMO still exists as a duty for collective future generations. For example, preserving adequate resources for future societies to support how basic lives can thrive. This approach to stewardship assures the continuation of humanity whilst avoiding the metaphysical dilemma of the non-identity problem. As a result, the non-identity problem weakens the binding force and detected urgency of FMO, which relocates remaining duties to stewardship frameworks that serve for collective future generations.

Finally, due to future persons' inherent inability to participate in social contracts, our moral obligations (such as fair treatment in cooperative enterprises) are clearly weakened by them. As Lawrence Becker notes: "Obligations without the possibility of reciprocation are inherently unstable, relying on moral imagination rather than lived interdependence." Since future persons are nonexistent, they cannot reciprocate as they cannot provide us with benefits, cannot hold us accountable, and cannot participate in mutual agreements. For example, the duty of fair play between job peers, where mutual participation and benefit sharing is required, is not applicable for future generations like it is for contemporaries. Moreover, according to Thomas Scanlon's Contractualist philosophy, future persons cannot express their preferences or personal reasons for us to know whether we are facilitating them. Therefore, a reciprocal exchange of benefits or burdens over time is impertinent for future persons.

However, this does not indicate that FMO has entirely evaporated. According to John Rawls' "just savings principle", we should save a fair quantity of resources for the next generation to maintain a just system. This suggestion attempts to prevent excessive inequalities between generations and encourages future generations to continue this pattern. Through this, Rawls tries to bridge this gap of moral obligations. Yet, without reciprocity, moral obligation shifts to voluntary preservation, which is a less compelling reason for action. Thus, Rawls' attempt is based on self-imposed generosity instead of mutual moral compulsion, where the benefits saved for the next generations cannot be returned to us. Hence, FMO is weakened as incentives are weakened due to the instinctive prioritization of mutual relationships. Thus, the one-way relationship between us and future persons stands in clear contrast with the reciprocity between contemporaries, which undeniably precludes future persons from such reciprocal moral obligations and bonds.

In summary, because of epistemic uncertainty, the non-identity problem, and the absence of reciprocity, future persons are precluded from the specific, binding obligations that we owe to living persons. Instead, FMO holds a weaker strength, for which it aims at preserving fundamental conditions necessary for general future societies to exist and flourish.

3. Policy implications due to distinctions in LMO and FMO

Corresponding to the variation of strength between LMO and FMO, policies should value contemporaries' well-being greater than future persons' to reflect the difference in moral urgency. We may demonstrate this in the following way:

Premise 1: Policies should correspond to moral obligation (i.e., the greater the moral obligation, the greater the need for policies to formalize, codify and enforce this).

Premise 2: We have greater moral obligations towards living persons than future persons (due to epistemic limitations, the non-identity problem, and reciprocity).

Conclusion: Therefore, policies should focus more on obligations that pertain to living persons than for future persons.

Nonetheless, policies should also still reflect the moral obligations we have to future persons in the following ways: [1] policies should utilize adaptive management systems to navigate epistemic limitations towards the future; [2] as a result of the non-identity problem, policies should focus on collective well-being (especially for future persons); [3] policies should be based off the more unchanging reciprocal social contracts to predict such mutual relationships in the future.

Considering epistemic limitations, our policies should embrace adaptive management systems: a flexible method where policies can adjust according to new data. For instance, the European Climate Law exemplifies the adaptive management framework by binding the European Union to re-evaluate climate goals every 5 years according to new scientific data. Unlike direct harm avoidance that applies for LMO, the epistemic challenge when it comes to FMO requires greater institutional humility. Hence, adaptive

policies avoid over-projection of current values and knowledge into the future, allowing alterations based on any future shifts. Therefore, it is clear how adaptive management systems are our best approach at both mitigating the epistemic limitations regarding FMO, whilst also addressing the LMO.

As a result of the non-identity problem, our policies should prioritize collective well-being over individualized concerns (though it is still possible for policies for contemporaries to address specific individuals). A clear example is Norway's Government Pension Fund Global, where any revenue from oil and gas extraction is deposited and saved for future Norwegian society to withdraw at 3% annually. Norway's policy approaches funds as a collective inheritance, which avoids the non-identity dilemma as these funds can be used by any future Norwegian persons. Contemporary policies should also generally have a collective approach, not due to the non-identity problem, but rather for efficiency (making the biggest impact for most people). However, with contemporaries, there is some scope for more individualized policies since we can accurately minimise harm on an individual level in the present. Hence, the difference between FMO and LMO again is reflected in our policymaking: FMO requires stewardship for a collective [undefined] subject; LMO also typically works in a collective manner but additionally allows for more specified policies.

Finally, policies for future persons should prioritize the more unchanging reciprocal relationships. Future actions will take place within the context of mutual, reciprocal relationships (as part of the social contract). However, given the aforementioned epistemic limitations, we should focus on the more widely applicable, unchanging, and deeply rooted reciprocal relations that exist in society and make more of our policies around these issues. For example, the parent-child bond, as a core feature of human existence, cannot feasibly change in the future. Thus, policies enforcing obligations for parents to provide necessities for children should be made for and applied into the future. In comparison, policies enforcing DVD rentals concern a very specific reciprocal exchange and are unlikely to apply into the [extended] future. Hence, deeper-rooted and more widely applicable reciprocal bonds have greater moral urgency for policies to protect than unstable relationships.

Therefore, due to the variance between LMO and FMO, policies should prioritize the interests of living persons over future persons. Nevertheless, policies should still attempt to provide just representation of future persons through adaptive management, taking collective approaches, and being based on more stable reciprocal contracts.

4. Conclusion

Thus, we have seen how LMO are evidently stronger than FMO: [1] epistemic limitations obscure future interests and impacts of present actions, [2] the non-identity problem undermines the notion of direct harm to future persons, and [3] the impossibility of reciprocity with future persons greatly reduces moral obligation to them (per Contractualism). Moreover, based on these differences in moral obligations, we have the following impacts on policymaking: [1] policies should employ adaptive management frameworks that preserve options for future persons; [2] policies generally should prioritize collective well-being (particularly for future persons); [3] policies for future persons should prioritize the more widely applicable, unchanging, reciprocal relations. Failing our moral duties for living persons not only damages their rights but also harms the very foundations of future justice itself. The question is not whether we can afford to invest in the future, but whether we can afford not to invest in the future. Finally, as Abraham Lincoln once warned, “Those who deny freedom to others deserve it not for themselves, and, under a just God, cannot long retain it,” reminding us on how failing our moral duties for living persons not only damages their rights but also harms the very foundations of future justice.

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